

26TRCV00967 26TRCV00967

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Case Number: 26TRCV00967 Hearing Date: August 24, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

CORDELL GAMBLE, an individual,

Plaintiffs,

Case No.:

26TRCV00967

vs.

[Tentative] Sustained/Overruled/Denied/Granted

9901 LA CIENEGA LOS ANGELES ESONG, LLC, a California Limited Liability Company; TANFORD INC., a Delaware Stock Corporation; and DOES 1– 20, inclusive,

Defendants.

Hearing Date: August 24, 2026

Moving Parties: Defendant 9901 La Cienega Los Angeles Esong, LLC

Responding Party: Plaintiff Cordell Gamble

HEARING: Demurrer with MTS

The Court considered the moving, opposition, and reply papers.

RULING

The Court sustains the Demurrer as to the third and fifth causes of action with leave to amend.

The Court overrules the Demurrer as to the second cause of action.

The Court grants the Motion to Strike in part with leave to amend.

The Court denies the Motion to Strike in part.

BACKGROUND

On March 16, 2026, Plaintiff Cordell Gambel filed the Complaint against Defendant 9901 La Cienega Los Angeles Esong, LLC, alleging causes of action for negligence, nuisance, IIED, breach of contract, and fraudulent concealment.

On July 17, 2026, Defendant filed the Demurrer and Motion to Strike.

On August 11, 2026, Plaintiff filed the Opposition.

On August 17, 2026, Defendant filed the Reply.

LEGAL STANDARD

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can

be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

DISCUSSION

Meet and Confer

Before filing a demurrer, "the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer." (Code Civ. Proc., § 430.41, subd. (a).)

On July 2, 2026, the parties met and conferred regarding the Demurrer. Thus, the Court finds that Defendant has satisfied the meet and confer requirements.

Cause of Action 2 – Nuisance

A claim of private nuisance requires that the defendant's actions (1) interfere with the plaintiff's use and enjoyment of their property, (2) cause substantial actual damage, and (3) result in an unreasonable interference based on the nature, duration, or extent of the interference. (San Diego Gas & Electric Co. v. Superior Court (1996) 13 Cal.4th 893, 938.) The elements of public nuisance are as follows: (1) Defendant, by acting or failing to act, created a condition that was either harmful to health or obstructed the free use of property, interfering with the comfortable enjoyment of life or property; (2) the condition affected a substantial number of people simultaneously; (3) an ordinary person would be reasonably annoyed or disturbed by the condition; (4) the seriousness of the harm outweighs the social utility of the conduct; (5) plaintiff did not consent to the conduct; (6) plaintiff suffered harm distinct from that suffered by the general public; and (7) defendant's conduct was a substantial factor in causing plaintiff's harm. (Birke v. Oakwood Worldwide (2009) 169 Cal.App.4th 1540, 1548.)

Defendant argues that the nuisance cause of action is deficient. First, private nuisance protects a plaintiff's interest in the use and enjoyment of real property, and the plaintiff must plead an injury specifically referable to the use and enjoyment of his or her land. (Koll-Irvine Center Property Owners Assn. v. County of Orange (1994) 24 Cal.App.4th 1036, 1041.) Defendant contends that a guest who pays to occupy a hotel room for a single night holds a revocable license rather than the interest in land the tort protects, and that the innkeeper retains possession and control of the premises. Defendant points out that Plaintiff's own allegations frame his interest as that of a guest under a hotel rental agreement.

Second, Defendant argues that, to the extent Plaintiff pleads a public nuisance, a private individual may sue only where the nuisance is specially injurious to himself, meaning an injury different in kind, and not merely in degree, from that suffered by the general public. (Venuto v. Owens-Corning Fiberglas Corp. (1971) 22 Cal.App.3d 116, 123.) Defendant maintains that Plaintiff's claimed injuries, bug bites and emotional distress, are, on the Complaint's own allegations, the same injuries any exposed guest would suffer, and that the bare assertion that his harm was different from the type of harm suffered by the general public is a conclusion unsupported by facts.

Third, and independently, Defendant argues that the nuisance count is duplicative of the negligence count. Where negligence and nuisance causes of action rely on the same facts about lack of due care, the nuisance claim is a negligence claim. Defendant contends that every factual predicate of the nuisance count, namely the failure to inspect, maintain, disclose, and remediate the alleged infestation, is drawn verbatim from the negligence count.

In opposition, Plaintiff argues that the nuisance count is adequately pleaded as a public nuisance. Civil Code sections 3479 and 3480 recognize a condition injurious to health, offensive to the senses, or obstructive of the comfortable enjoyment of life or property that affects a considerable number of persons, and a private plaintiff may sue where the condition is specially injurious to that plaintiff. (Civ. Code, §§ 3479, 3480.) Plaintiff argues the Complaint alleges those matters, namely a bed bug infestation throughout multiple rooms and common areas exposing hundreds of daily guests, Defendant's knowing failure to abate despite notice, lack of consent, and causation of his injuries.

Plaintiff also argues that he pleads an individualized injury different in kind from the public's generalized exposure, as the Complaint distinguishes the public's exposure to a health hazard from his own bites, rash, scarring, property contamination, medical treatment, and ongoing psychological symptoms.

Plaintiff further contends that Defendant's private nuisance point does not defeat the pleaded public nuisance theory. Whether a transient guest holds a possessory interest is beside the point, because public nuisance protects community interests and a specially injured plaintiff has standing.

Here, the Complaint pleads that Plaintiff was bitten by bed bugs and that the public was only exposed to the bed bugs. (Complaint ¶¶ 64-68.) Thus, the Court finds that Plaintiff has pleaded both a condition that affected a significant number of people, exposure to bed bugs, and distinct harm, in the form of bites. Last, In *Lynch v. Peter & Associates etc.* (2024) 104 Cal.App.5th 1181, the Court found that "nuisance is an entirely separate cause of action from negligence, and the analysis should focus on whether the plaintiff has alleged all necessary elements of the claim... Even if the nuisance claim relies on the same facts about lack of due care supporting the negligence claim, it does not mean the claims are identical or duplicative. Indeed, many pleadings allege numerous causes of action based on the same facts. This does not mean the causes of action are all the same. Also, assessing a nuisance claim in this manner ignores the fact that a duty between defendant and plaintiff need not exist to maintain a nuisance claim. By conflating the two theories, the trial court added an element to appellant's nuisance claim she was never required to establish in the first place." (Id. at 1198.) Thus, the Court finds that Plaintiff has successfully pleaded a cause of action for public nuisance.

Therefore, the Court overrules the Demurrer as to the second cause of action.

Cause of Action 3 – IIED

To succeed on a cause of action for IIED, the plaintiff must prove outrageous conduct by the defendant that is the actual and proximate cause of the plaintiff's severe emotional distress. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1259.)

To state a cause of action for IIED, Plaintiff must plead "with great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community." (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 161.)

Defendant argues that the claim for IIED fails because the conduct alleged is not outrageous as a matter of law. Defendant emphasizes that conduct is outrageous only when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. Defendant further notes that whether conduct may reasonably be found outrageous is a question the court decides in the first instance. (*Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1045.) On Defendant's view, failing to prevent or remediate a bed bug infestation does not meet that standard, and the same alleged failure to inspect, maintain, and remediate underlies the negligence count, simply relabeled as an intentional tort.

Defendant also argues that the Complaint fails to allege severe emotional distress with any factual specificity, contending that the distress allegations are conclusory recitals. Defendant points to the Complaint's template character, noting that although Plaintiff is an individual over the age of eighteen and male, the Complaint repeatedly refers to Plaintiff as her and she. Defendant argues that these misdescriptions confirm that the outrageousness and severe-distress allegations are boilerplate rather than facts pleaded about this Plaintiff.

In opposition, Plaintiff argues that the Complaint alleges knowing exposure to a bed bug infestation sufficient to state a claim for IIED. Plaintiff contends the conduct is more culpable than a mere failure to remediate, alleging that Defendant knew of the infestation before his arrival, received prior guest complaints, kept renting rooms for profit, concealed the infestation when he paid for Room 223, exposed him while he slept to blood-feeding parasites, and failed to abate even after he complained.

Here, while the Complaint alleges that Defendant had knowledge of the bed bug infestation from online reviews, a demurrer “does not admit contentions, deductions or conclusions of fact or law,” and the Complaint does not state when the online reviews were posted with particularity, or by whom, nor does the Complaint allege how Defendant knew of the reviews. (Complaint ¶ 93; Daar, supra, 67 Cal.2d 695, 713.) Thus, the Court finds that Plaintiff has not pleaded sufficient facts to show that Defendants had knowledge of the alleged bed bug infestation. Consequently, the Court finds that Plaintiffs have failed to plead with great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community.

Therefore, the Court sustains the Demurrer as to the third cause of action with leave to amend.

Cause of Action 5 – Fraudulent Concealment

To bring a fraudulent concealment claim, the plaintiff must allege: (1) the defendant concealed or suppressed a material fact; (2) the defendant had a duty to disclose that fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as they did if they had known of the concealed or suppressed fact; and (5) the plaintiff sustained damages as a result of the allegedly concealed or suppressed fact. (See Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1129.)

In Lazar v. Superior Court (1996) 12 Cal.4th 631, the Court found that “fraud must be pled specifically; general and conclusory allegations do not suffice” and that “this particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Lazar, supra, 12 Cal.4th 631, 645.)

Here, the Court has already found that the Complaint does not plead that Defendant had actual knowledge of any alleged infestation. Thus, the Complaint fails to allege that Defendant concealed knowledge of the bed bug infestation.

Therefore, the Court sustains the Demurrer as to the fifth cause of action with leave to amend.

Motion to Strike

California law authorizes a party's motion to strike a matter from an opposing party's pleading if it is irrelevant, false, or improper. (Code Civ. Proc., §§ 435; 436 subd. (a).) Motions may also target pleadings or parts of pleadings that are not filed or drawn in conformity with applicable laws, rules, or orders. (Code Civ. Proc., § 436 subd. (b).) A motion to strike is used to address defects that appear on the face of a pleading or from a judicially noticed matter but that are not grounds for a demurrer. (Pierson v Sharp Memorial Hospital (1989) 216 Cal.App.3d 340, 342; see also City & County of San Francisco v Strahlendorf (1992) 7 Cal.App.4th 1911, 1913 (motion may not be based on a party's declaration or factual representations made by counsel in the motion papers).) In particular, a motion to strike can be used to attack the entire pleading or any part thereof – in other words, a motion may target single words or phrases, unlike demurrers. (Warren v. Atchison, Topeka & Santa Fe Railway Co. (1971) 19 Cal.App.3d 24, 40.) California's policy of liberal construction applies to motions to strike. (Code Civ. Proc., § 452; see also Duffy v. Campbell (1967) 250 Cal.App.2d 662, 666 (noting that courts must resolve all reasonable doubts in favor of the pleading when considering a motion to strike).) The Code of Civil Procedure also authorizes the Court to act on its own initiative to strike matters, empowering the Court to enter orders striking matter “at any time in its discretion, and upon terms it deems proper.” (Code Civ. Proc., § 436.)

Defendant requests that the Court strike the request for punitive damages, the request for section 1021.5 and section 1717 attorneys' fees, negligence per se allegations, and the tort and emotional distress damages in the breach of contract count.

Punitive Damages

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) A request for punitive damages may be made pursuant to Civil Code section 3294 subdivision (a), which provides that "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant." (Civil Code § 3294 subd. (a).)

Under the statute, malice is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others," and oppression is defined as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Code Civ. Proc. § 3294 subd. (c)(1), (c)(2).) Although not defined by the statute, despicable conduct refers to circumstances that are base, vile, or contemptible. (College Hospital, Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) Also, "[u]nder the statute, malice does not require actual intent to harm...Conscious disregard for the safety of another may be sufficient where the defendant is aware of the probable dangerous consequences of his or her conduct and he or she willfully fails to avoid such consequences" (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.)

Here, the Court has reviewed the Complaint and finds no non-conclusory allegations of oppression, fraud, or malice.

Therefore, the Court grants the Motion to Strike as to the punitive damages with leave to amend.

Negligence Per Se designation

Defendant requests that the court strike "Negligence Per Se" from the title of the first cause of action. Negligence per se is not a standalone cause of action but an evidentiary presumption under Evidence Code section 669. (Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1285.)

Therefore, the Court grants the Motion to Strike as to the negligence per se designation with leave to amend.

Attorneys' fees

Plaintiff requests attorneys' fees under Code of Civil Procedure section 1021.5 and Civil Code section 1717. However, both requests are deficient. For section 1717, the alleged contract contains no attorneys' fees provision, and for section 1021.5, the Complaint does not allege any significant public benefit to be achieved through the instant action.

Therefore, the Court grants the Motion to Strike as to the attorneys' fees requests with leave to amend.

Tort and emotional-Distress damages in the breach-of-contract count

"Contract damages are generally limited to those within the contemplation of the parties when the contract was entered into or at least reasonably foreseeable by them at that time; consequential damages beyond the expectation of the parties are not recoverable. [Citations.] This limitation on available damages serves to encourage contractual relations and commercial activity by enabling parties to estimate in advance the financial risks of their enterprise." (Erlach v. Menezes (1999) 21 Cal.4th 543, 551.) "Tort damages have been permitted in contract cases where a breach of duty directly causes physical injury." (Ibid.) Here, the alleged breach of duty was exposing Plaintiff to bed bugs, which foreseeably led to bites.

Therefore, the Court denies the Motion to Strike as to the tort and emotional-Distress damages in the breach-of-contract count.